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CASE #	CASE NAME	HEARING NAME
CVME2508170	WARRIOR MACHINERY, LLC VS Socal SHAKER PLATES & CONSTRUCTION SITE SERVICES, LLC	MOTION TO STRIKE/DEMURRER TO 1 ST AMENDED COMPLAINT

Tentative Ruling: Demurrer sustained to the 1st, 2nd, 3rd, 4th, 6th, 7th, and 8th causes of action on grounds of failure to state facts sufficient to constitute a cause of action. Special Demurrer sustained to the 1st and 6th causes of action. Motion to Strike is Moot. Plaintiff granted 20 days leave to amend.

This case arises from a dispute between Warrior and Socal Shaker whereby Socal Shaker purportedly entered into an agreement with Warrior to rent certain heavy equipment for use in a construction project, located at 37701 Warren Road, Winchester, California 92596 ("Project").

In January 2025, Socal Shaker and Warrior, by and through its authorized Sales Representative, entered into an agreement to provide Socal Shaker with one 85,000 lbs. excavator ("Equipment") for use in the Project. Implied in the agreement was the mutually understood term that the Equipment would be operational for its intended use. According to Socal Shaker, immediately following delivery of the Equipment, on or around January 4, Socal Shaker became aware of substantial pre-existing damage and defects to the Rental Equipment. On January 6, 2025, Socal Shaker notified Warrior of the substantial pre-existing damage, accompanied by photos evidencing the damage. Socal Shaker additionally requested that Warrior provide a service technician to the Project to inspect and/or repair the damaged Equipment. From approximately January 6, 2025 through January 29, 2025, Socal Shaker made repeated efforts to obtain assistance from Warrior related to the damages and malfunctioning aspects of the Equipment, to no avail. In fact, Warrior did not have any technician contact Socal Shaker until January 29, 2025, resulting in substantial delays to the Project, including days where the Rental Equipment was completely inoperable.

In or around March 2025, Socal Shaker returned the Equipment to Warrior in the exact same condition as it was delivered to the Project in January 2025. Per Socal Shaker, on March 21, 2025, Socal Shaker received an invoice from Warrior, whereby Warrior noted that the damage to the Equipment was caused by Socal Shaker, despite its knowledge that the Equipment was delivered to the Project with pre-existing damage and malfunctioning components.

On July 22, 2025, Warrior filed its Complaint against Socal Shaker for (1) Breach of Contract, (2) Open Book Account, (3) Account Stated, (4) Trespass to Chattel, (5) Enforcement of Public Works Payment Bond, (6) Unjust Enrichment, (7) Negligence, (8) Conversion, and (9) Declaratory Relief.

On April 15, 2026, the Court sustained a demurrer to the 1st, 2nd, 3rd, 4th, 8th and 9th causes of action, with leave to amend. The court also deemed a concurrent motion to strike moot.

On April 29, 2026, a First Amended Complaint was filed for: (1) breach of contract; (2) open book account; (3) account stated; (4) trespass to chattel; (5) unjust enrichment; (6) negligence; (7) conversion; (8) declaratory relief; (9). breach of written personal guaranty; and (10) enforcement of public works payment bond.

* * *

Socal Shaker now demurrers to the 1st, 2nd, 3rd, 4th, 6th, 7th, and 8th causes of action on grounds of failure to state facts sufficient to constitute a cause of action. In addition, the demurer is made on grounds of uncertainty as to the 1st and 6th causes of action.

In Opposition, Plaintiff Warrior contends that the FAC cured each and every technical pleading defect identified in the Court's prior tentative ruling of April 14, 2026. The contract is now explicitly pled as written, the Glendora property has been entirely removed to unify the "Project" definitions, and each cause of action alleges robust ultimate facts.

In Reply, Socal Shaker essentially contends that the subject causes of action are well-pled.

Meet and Confer - CCP §§ 430.41 and 435.5 requires a meet and confer process via phone, videoconferencing, or in person before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) The Declaration of Stephen Kitagawa indicates that the parties met and conferred telephonically on June 10, 2026, and that Warrior's counsel was unwilling to further amend the pleading. (Declaration of Stephen Kitagawa, ¶¶ 11, 12,) Accordingly, Socal Shaker has complied with its statutory meet and confer obligation.

Standard - A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the pleading will also be accepted as true and, if contrary allegations appear in the pleading, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the pleading fails to state a cause of action, the court must grant the leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f)). Demurrers for uncertainty will only be sustained where the defendant

cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*).

1st cause of action for breach of contract - "A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiffs performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.) To sufficiently allege a contract's legal effect, plaintiff must allege the making of the contract, and then the substance of its relevant terms. (4 Witkin, Cal. Proc. (5th 2008) Plead. §519.)

While not necessary to plead a contract's terms verbatim in the pleadings, "[t]hat a contract may be pleaded in its legal effect and need not be set forth in haec verba is thoroughly settled." (*Pneucrite Corp. v. U.S. Fidelity & Guaranty Co.* (1935) 7 Cal.App.2d 733, 741–742.) To sufficiently allege a contract's legal effect, plaintiff must allege the making of the contract, and then the substance of its relevant terms. (4 Witkin, Cal. Proc. (5th 2008) Plead. §519.)

Failure to State Facts and Uncertainty (seemingly grouped together in motion) -

The FAC is uncertain as to the nature and contractual basis of the alleged breaches. Plaintiff alleges several purported breaches, including: (a) nonpayment of rental charges, fees, and taxes; (b) nonpayment of repair invoice SVIN4405; (c) return of equipment in a condition allegedly exceeding ordinary wear and tear; (d) nonpayment of late fees at the rate of 1.5% per month; and (e) failure to maintain additional-insured coverage. (FAC, ¶¶ 39(a)–(e).) Yet the FAC fails to identify which specific agreement, transaction, invoice, or contractual provision gives rise to each alleged obligation. The FAC fails to allege the text of Warrior's "written rental terms and conditions" are purportedly incorporated into each transaction, thus creating ambiguous and uncertain claims related to the claimed breach of contract by Socal.

The FAC aggregates multiple writings and transaction groupings under an uncertain, umbrella "Rental Contracts" theory, without cleanly identifying which written terms govern which particular invoice and any supposed breach by Socal. Thus, such uncertain allegations create uncertainty and ambiguity as to the operative agreement(s) for each charge category and alleged breach theory (e.g., late fees, insurance obligation, damage-waiver, repair invoice). (FAC, ¶¶ 22–24 (defining "Rental Contracts" as a composite of multiple writings and order numbers), see also FAC ¶ 39 (pleading five categories of alleged breaches in the aggregate.)

The FAC likewise fails to allege the material dates necessary to identify the alleged breaches, including the relevant rental periods, dates of nonpayment, dates on which any repair obligation allegedly arose, or the date on which Defendant allegedly failed to maintain the required insurance coverage. Nor does the FAC adequately allege facts showing Defendant's assent to the purported "written rental terms and conditions" governing each transaction.

1st (breach of contract), 2nd (open book account) and 3rd (account stated) causes of action

Uncertainty - A demurrer for uncertainty may be sustained when the complaint is drafted in a manner that the defendant cannot reasonably respond, i.e., the defendant cannot determine what issues must be admitted or denied, or what causes of action are directed against the defendant. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Here, the FAC blends open-book and account-stated theories with the same composite “Rental Contracts” as alleged under its breach of contract cause of action, resulting in unclear and ambiguous allegations. Further, such ambiguity and uncertainty in the plead facts precludes Socal from reasonably interpreting or determining whether Warrior seeks to recover purely on an account theory independent of its contract claim, or as an alternative theory premised entirely on the same writings.

It cannot be determined from the pleading what specific balance and assent are alleged for Warrior’s account stated claim, beyond the face of the attached invoices. The FAC alleges a Customer ID (CUS0639), a systematized account, credits SCM0719 and SCM0720, and a principal balance of \$37,562.70, but entirely fails to allege facts showing Socal’s express assent to a “balance struck” beyond retention of invoices. Moreover, the FAC fails to allege specific facts which segregate repair charges (SVIN4405) from rental charges for account-stated purposes (FAC, ¶¶ 24(d), 25, 43-45, 48-49), thus preventing Socal from being able to determine the particular claims made against it by Warrior under these theories.

These causes of action are uncertain as to (1) whether the account based claims are pled in the alternative to its contract claim, (2) the specific dates, content, and manner of the alleged assent to a “balance struck,” and (3) the delineation of which items (rental vs. repair) are included in the claimed account(s).

4th cause of action for trespass to chattel - “Trespass to chattel, although seldom employed as a tort theory in California. . . lies where an intentional interference with the possession of personal property has proximately caused injury.” (*Thrifty-Tel, Inc. v. Bezenek* (1996) 46 Cal.App.4th 1559, 1566-1567.)

The FAC alleges that Warrior consented to limited use consistent with rated specifications and ordinary operations, and that Socal “intentionally” operated the excavator outside specifications causing impact damage. However, as noted by Socal, the facts as plead are overly generalized and vague, without specifying any particularized conduct, dates, operators, or circumstances that demonstrated Socal’s intentional interference with possession. (FAC, ¶¶ 30, 31, 54-56). Aside from the conclusory claims of “intentional” conduct, the facts as plead in the FAC simply demonstrate nothing beyond mere negligent operation of the machinery by Socal. Warrior’s failure to allege any specific facts demonstrating this requisite intentional interference with its possession of the rental equipment is fatal. Trespass to chattel is an intentional tort, and without any factual allegations supporting such intent to interfere, this cause of action fails.

6th cause of action for negligence - Where a negligence cause of action incorporates the same factual allegations as the breach of contract claim and simply affixes the word “negligence” to the same conduct, it fails to state a cognizable cause of action. (*Rufini v. CitiMortgage, Inc.* (2014) 227 Cal.App.4th 299). Where the only damages alleged are economic, the economic loss rule bars recovery in negligence, absent an independent duty and physical injury or property damage. (*Moore v. Centrelake Medical Group, Inc.* (2022) 83 Cal.App.5th 515).

In the FAC, Warrior pleads negligence based on “equipment damage” during its contractual rental possession, but fails to identify any independent duty or noncontractual standard of care distinct from the contractual rental terms. Rather, Warrior’s cause of action for negligence alleges a generic duty to use reasonable care, rather than evidencing any articulable legal duty between the parties that is separate and distinct from the terms of the “Rental Contracts” (FAC, ¶¶ 66–70). Thus, the FAC is uncertain and ambiguous as to the basis for any alleged “duty” between the parties that would extend beyond contractual obligations.

Further, Warrior pleads purely economic damages in the form of “repair costs” and “loss of use” damages, which are directly tied to the same transactions and equipment serving as the subject of the underlying “Rental Contracts” (FAC, ¶¶ 66–70). Thus, based on the economic loss rule, these damages are duplicative as those sought pursuant to Warrior’s contract claims, and Warrior is therefore barred from seeking recovery under a tort theory for its purely contractual economic losses.

7th cause of action for conversion - “To prove a cause of action for conversion, the plaintiff must show the defendant acted intentionally to wrongfully dispose of the property of another.” (*Duke v. Superior Court* (2017) 18 Cal.App.5th 490, 508.) “[Conversion] must be knowingly or intentionally done,... Because the act must be knowingly done, ‘neither negligence, active or passive, nor a breach of contract, even though it result in injury to, or loss of, specific property, constitutes a conversion.’ ” (*Taylor v. Forte Hotels Int’l.* (1991) 235 Cal.App.3d 1119, 1124.) “[T]he law is well settled that there can be no conversion where an owner either expressly or impliedly assents to or ratifies the taking, use or disposition of his property.” (*Farrington v. A. Teichert & Son, Inc.* (1943) 59 Cal.App.2d 468, 474.)

Here, the FAC alleges intentional operation beyond the authorized scope, but no facts evidencing any wrongful retention, refusal to return, or dispossession by Socal tantamount to a taking. (FAC ¶¶ 73-75). Mere unintentional damage to an item of property simply cannot be grounds for conversion, particularly where no facts are plead to demonstrate that SOCAL undertook any intentional act toward the rental equipment.

Finally, Warrior’s conversion claim fails because it expressly consented to Socal’s taking of the equipment for use in the Lake Skinner project. This express assent to the taking and use of the rental equipment simply eliminates any claim that Socal intentionally interfered with Warrior’s possession. In fact, Warrior temporarily contracted away its right to the possession of that rental equipment for the time period.

8th cause of action for declaratory relief - Declaratory relief is available where an “actual controversy” exists relating to the parties’ respective rights and duties. (CCP §

1060.) An “actual controversy” exists where the parties have adverse positions on an existing legal relationship, and a judicial declaration would have a practical impact. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79–80.)

The controversy must be justiciable, and to be justiciable, it must be ripe. (*Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.) “A two-pronged test is used to determine ripeness of a controversy: (1) whether the dispute is sufficiently concrete so that declaratory relief is appropriate; and (2) whether the parties will suffer hardship if judicial consideration is withheld.” (*City of Santa Monica v. Stewart* (2005) 126 Cal.App.4th 43, 64.)

Here, The FAC impermissibly seeks declarations on enforceability, scope of guaranty, effect of damage-waiver charges, insurance obligations, and bond coverage, while additionally seeking declarations on issues such as whether the Credit Application and Rental Contracts are enforceable, whether the guaranty applies, whether damage-waiver charges affect liability for repair charges, and whether bond coverage extends to categories of charges. These issues are outside of the scope of declaratory relief, and Warrior must narrow its scope to those actual, necessary declarations, rather than reiterate inappropriate declarations duplicative of the adjudication of existing causes of action. Warrior must further identify the present controversy between specific parties requiring a declaration, distinct from a money judgment.

Here, the deficiencies included in the FAC and the currently existing disputes related to key factual aspects of the claims render the pleading insufficiently definite to allow for declaratory relief.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2303476	LEBLANC VS TAYLOR MORRISON HOME CORP.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is granted as to plaintiffs Robert LeBlanc, Elena LeBlanc, Defendant WLH Communities -Alderwood LLC, and Defendant Leonard’s Roofing. Remainder of case is stayed pending arbitration.

This action arises from injuries sustained by Plaintiffs Robert LeBlanc (“Robert”), Elena Marie LeBlanc (“Elena”), John Roe 1, a minor, and Jane Roe 2, a minor (“Minor Plaintiffs,” collectively, “Plaintiffs”) at their home (“Property”), which was built by Defendant WLH Communities – Alderwood, LLC (“WLH”).

In the Second Amended Complaint (“SAC”), Plaintiffs allege that they took possession of the Property on April 27, 2021. Plaintiffs allege that several months after living at the Property, they began experiencing numerous symptoms, including severe abdominal pain, migraines, nausea, blurred vision, diarrhea, constipation, etc. Plaintiffs allege that they noticed intermittent sewage or foul smells in November 2022, which they reported to Defendant Taylor Morrison (“TM”).

On January 14, 2023, Plaintiffs allege that they reported a leak to TM, who inspected the Property on January 21, 2023, and discovered that whoever had installed the pipe